

IN THE MISSISSIPPI SUPREME COURT

Matthew O. Reardon

v.

State of Mississippi

ORIGINAL

Cause No: 2024-TS-00839

FILED

OCT 17 2024

OFFICE OF THE CLERK
SUPREME COURT
COURT OF APPEALS

MOTION FOR APPOINTMENT OF APPELLATE COUNSEL

Comes Now, Matthew O. Reardon, Appellant, whom respectfully requests this honorable Court to Appoint him Appellate Counsel. Appellant affirms the following:

- 1) Appellant is incarcerated at the Mississippi State Penitentiary and as such is unable to gather evidence which is needed for this Appeal.
- 2) Appellant is indigent and has been granted IFP status, and as such is unable to hire his own attorney for this Appeal to represent his interests in this Cause and to obtain needed information.
- 3) Courts have previously appointed attorneys to represent incarcerated petitioners under the authority of 28 U.S.C.A 1915 (d) and 18 U.S.C.A 3006A (g) as interpreted by McClain v. Manson 343 F. Supp 382 (D. Conn 1972)
- 4) That as the Accused, Appellant was entitled to and appointed Counsel at trial. This Court held that an accused entitled to Counsel at trial is also entitled to Counsel in an appeal as of right to the Supreme Court. Neal v. State 422 So. 2d 747, 748 (Miss 1982) Also recognized by US Supreme Ct in Evitts v. Lucey 469 US 387 (1985)

MOTION#2024-3493

5) Miss R. App Procedure Rule 6(b) provides for the appointment of the indigent Appeals Division of the office of the State Public Defender in accordance with Section 99-40-1 of the Mississippi Code. An Indigent Appellant shall be represented by the Indigent Appeals Division of the office of the State Public Defender absent good cause shown,

6) That Appellant has need of assistance in presenting evidence to this Court to make his claim and properly draft his Appeal,

WHEREFORE PREMISES CONSIDERED,
Appellant respectfully prays this Court enter an order appointing Counsel to represent his interests on this Appeal

Respectfully Submitted this the 14th day of October, 2024


Matthew D. Reardon
Appellant

Matthew Reardon - 210988
25/D/184
PO Box 1057
Parchman, MS 38738

JACKSON MS 390

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